

		from Defendants to Plaintiff on a definite schedule.” (Motion at p.5, Ins. 3-8.) Plaintiff further states Defendants partially performed under the Third Agreement but then defaulted. (Hall Declaration ¶11.) Plaintiff also states Defendants failed to comply with his demand for payment under the terms of the Third Agreement. (Hall Declaration, ¶13, Exh. 5.) The court dismissed this case without prejudice on August 31, 2018, after Plaintiff filed a notice of settlement of entire case and then all parties failed to appear at two separate order to show cause hearings regarding the dismissal of settled case. Code of Civil Procedure section 664.6 creates an expedited procedure for the enforcement of settlements reached among the “parties to pending litigation.” It does not apply to agreements reached before an action is filed or after judgment has become final. (<i>Kirby v. Southern California Edison Co.</i> (2000) 78 Cal.App.4th 840, 845; <i>Walton v. Mueller</i> (2009) 180 Cal.App.4th 161, 172.) Section 664.6 only applies to agreements reached during pending litigation. This case was not pending when the parties entered into the Third Agreement on March 3, 2025, and therefore section 664.6 does not apply. Section 664.6, subdivision (e), is of no assistance to Plaintiff because it was enacted years after the court dismissed this case. Moreover, it addresses the question of retention of jurisdiction, it does not address the requirement that the agreement to be enforced be reached among parties to pending litigation. Based on the foregoing, the motion is DENIED. In denying the motion, the court does not express any opinion on the enforceability of the Third Agreement in general. The court simply concludes section 664.6 is not available to enforce the Third Agreement because this case was not pending when the parties reached that agreement. Plaintiff is free to seek to enforce the Third Agreement through a new lawsuit based on that agreement. Plaintiff’s counsel is ordered to give notice of this ruling.
11.	<i>Shalika vs. BMW of North America, LLC</i> 2025-01470449	Before the court is the motion for attorney fees filed by plaintiffs Ahmad S. Shalika and Malalai Shalika (collectively, Plaintiffs) seeking attorney fees, costs, and expenses incurred from case initiation through settlement and including the fee motion. As more fully set forth below, the motion is GRANTED, and Plaintiffs are awarded attorney fees in the total amount of \$16,410.00 and costs

		and expenses in the amount of \$1,763.36 against defendant BMW of North America, LLC (Defendant). The parties settled this Song-Beverly case before trial with Defendant agreeing to pay reasonable attorney fees, costs and expenses to Plaintiff as the prevailing party. As such, there is no dispute among the parties as to Plaintiffs' right to recover their attorney fees, costs, and expenses. Rather, the dispute focuses on what is the reasonable amount of attorney fees, costs, and expenses. By this motion, Plaintiffs seek a total of \$25,650.00 in attorney fees, which is comprised of \$17,100.00. in attorney fees (including time spent preparing this motion) and a 1.5 lodestar multiplier in the amount of \$8,550.00. (See Wirtz Reply Decl. ¶ 3, Exh. 11.) Plaintiffs also request costs and expenses in the amount of \$1,763.36. The Song-Beverly Act provides for attorney fees, costs, and expenses to the prevailing party in a lemon law case: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) "Determining a reasonable attorney fee award in Song-Beverly Act cases "'ordinarily begins with the 'lodestar,' [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate.'" [Citation.] The lodestar may 'then be adjusted based on factors specific to the case, in order to fix the fee at the fair market value of the legal services provided.' [Citation.] The lodestar method 'anchors the trial court's analysis to an objective determination of the value of the attorney's services,' and thus ensures the amount awarded is not arbitrary. [Citation.]" (<i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, 1157-1158 (<i>Tidrick</i>).) "The Song-Beverly Act's attorney fee provision "'requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited, and the results achieved. If the time expended
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or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of 'showing that the fees incurred were "allowable," were "reasonably necessary to the conduct of the litigation," litigation," and were "reasonable in amount."' [Citation.] [Citation.]" (*Tidrick, supra*, 112 Cal.App.5th at p. 1158.)

Hourly Rates: "The reasonable hourly rate is that prevailing in the community for similar work." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see also *Chacon v. Litke* (2010) 181 Cal.App.4th 1234, 1260 ["reasonable market value" of counsel's services is measure of reasonable hourly rate].) The relevant "community" is generally based on where the services were rendered, i.e., where the court is located. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242-1243.) "Accordingly, the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community in Orange County." (*Tidrick, supra*, 112 Cal.App.5th at p. 1157.)

The court may rely on personal knowledge and familiarity with the legal market in setting a reasonable hourly rate. (*Heritage Pac. Fin., LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009; *569 E. County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437.) The court may consider various other factors when determining a reasonable hourly rate, including the attorney's skill and experience, the nature of the work performed, the relevant area of expertise and the attorney's customary billing rates. (*Flannery v. California Highway Patrol* (1998) 61 Cal.App.4th 629, 632.)

Here, Plaintiff seeks hourly rates of \$600 for senior trial attorneys Amy R. Rotman and Jessica R. Underwood; \$450 for associate Susanna Gonzales-McCaulley; and \$250 and \$300 for the paralegals. Based on the evidence provided by both parties, and on the court's own experience, the court finds the hourly rates sought are commensurate with the respective attorney's level of skill and experience and consistent with the prevailing rates for consumer attorneys practicing in Orange County in Song-Beverly cases.

Hours Expended: "[T]he verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous." (*Horsford v Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396; *Raining*

		<i>Data Corp. v. Barrenechea</i> (2009) 175 Cal.App.4th 1363, 1367 [declarations of counsel also are “sufficient to meet the burden of establishing the reasonableness of the fees incurred, without the need to produce copies of counsel’s detailed billing statements”].) To oppose a showing of a fee request supported by declarations describing the efforts taken with billing records to establish the hours of work, a party may either “attack the itemized billings with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable.” (<i>Premier Med. Mgmt. Sys. v. Cal. Ins. Guarantee Assoc.</i> (2008) 163 Cal.App.4th 550, 563-564.) “General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (<i>Id.</i> at p. 564.) “When confronted with hundreds of pages of legal bills, trial courts are not required to identify each charge they find to be reasonable or unreasonable, necessary or unnecessary.” (<i>Gorman v. Tassajara Development Corp.</i> (2009) 178 Cal.App.4th 44, 101.) “The party opposing the fee award can be expected to identify the particular charges it considers objectionable. A reduced award might be fully justified by a general observation that an attorney overlitigated a case or submitted a padded bill or that the opposing party has stated valid objections.” (<i>Ibid.</i>) Fee award amounts are matters within the trial court’s discretion because the “trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.” (<i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1132.) Here, Plaintiff seeks attorney fees in the amount of \$17,100.00 (which is based on 43.8 hours of time spent from inception through the preparation of this motion), plus an additional lodestar multiplier in the amount of \$8,550.00. Defendant argues time spent preparing “templative work” is excessive. A review of the billing records, however, shows the amount of time expended on each task is generally commensurate with the task, and not excessive. The number of hours sought for the individual tasks reflect fewer hours are being sought than would be appropriate if the work was started from scratch without templates.
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		All time sought was not reasonably expended, however. The court reduces the fee award by \$690.00 for the following time entries that are reflective of unreasonably incurred fees or for clerical tasks that are typically subsumed in overhead: 03/17/25 (0.1); 03/26/25 (0.5); 04/01/25 (0.1); 04/29/25 (0.1); 08/13/25 (0.1); 08/13/25 (0.1); 08/14/25 (0.1); 08/14/25 (0.1); 08/15/25 (0.1); 06/04/26 (0.3); 07/13/26 (0.1); 08/06/26 (0.3); 08/13/26 (0.1); and 11/13/26 (0.1 [anticipated]). The court therefore will deduct a total of \$690.00 from the request of \$17,100.00, which leads to a lodestar \$16,410.00. The court does not find any circumstances that warrant adjustment, either upward or downward. <u>Costs and Expenses:</u> Plaintiffs seek a total of \$1,763.36 in costs and expenses. Under Civil Code section 1794, subdivision (d), as the prevailing party, Plaintiffs are entitled to all "costs and expenses" that were reasonably incurred in prosecuting the case, including items beyond the statutory costs enumerated in Code of Civil Procedure section 1033.5. (<i>Jensen v. BMW of North Am.</i> (1995) 35 Cal.App.4th 112, 137-138.) Defendant does not dispute the reasonableness of the costs and expenses Plaintiffs identified. The court finds all such costs and expenses to be reasonable and to award costs in the requested amount of \$1,763.36. <u>Total Award:</u> When the amount of fees awarded (\$16,410.00) is added to the costs and expenses awarded (\$1,763.36) the total award is \$18,173.36. Based on the foregoing, the motion for attorney fees, costs, and expenses is GRANTED, and Plaintiffs are awarded a total of \$18,173.36 against Defendant. Plaintiffs' counsel is ordered to give notice of this ruling.
12.	Sams vs. Castillo 2026-01537470	Before the court is the amended petition for decedent's cremated remains filed by petitioner Michele Sams (Petitioner) on February 17, 2026. Petitioner filed the original petition commencing these proceedings on January 2, 2026. By the petition, Petitioner seeks a court order regarding the disposition of the remains of her alleged biological father, Billy Joe Hill (Decedent). Petitioner alleges respondent Lindsie Castillo (Respondent) also is a biological daughter of Decedent, and Respondent currently has possession of Decedent's cremated remains. Specifically, Petitioner seeks a court order (1) determining Petitioner has an equal right to the disposition of Decedent's remains and possession of